

**UNIVERSITY OF PROFESSIONAL STUDIES, ACCRA (UPSA) SCHOOL OF GRADUATE STUDIES -
SOGS**

THE CONSTITUTION

**OF THE GRADUATE STUDENTS' ASSOCIATION OF GHANA OF THE UNIVERSITY OF
PROFESSIONAL STUDIES, ACCRA (UPSA) BRANCH**

(GRASAG-UPSA)

GRASAG, PARTNERS IN NATIONAL DEVELOPMENT THROUGH RESEARCH AND PRACTICE

SEPTEMBER 2015

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Preamble

IN THE NAME OF THE ALMIGHTY GOD,

We, the members of the Graduate Students Association of Ghana, of The University of Professional Studies, Accra (UPSA).

RECOGNIZING the National secretariat of the Graduate Students' Association of Ghana as the mouthpiece of the general graduate students' movement in Ghana,

REALIZING the need to organize ourselves in the spirit of oneness to pursue common goals, equality and fraternity,

DETERMINED to promote the general welfare and ensure continuity in postgraduate education including academic, social and other pursuits,

AND SOLEMN declaration and affirmation of our commitment to freedom, justice, rule of law, probity and accountability

DO HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION

CHAPTER 1

THE GRASAG AND ENFORCEMENT OF THE CONSTITUTION

ARTICLE 1

Establishment and Name

1. The association shall be known and called **THE GRADUATE STUDENTS' ASSOCIATION OF GHANA, UNIVERSITY OF PROFESSIONAL STUDIES, ACCRA-BRANCH** (hereinafter called GRASAG-UPSA)
2. GRASAG-UPSA shall adopt the logo of the national secretariat except that the colors of the logo shall reflect the colors University of Professional Studies, Accra.
3. GRASAG-UPSA shall adopt the motto of the National Secretariat, which is "**THE NATION'S PREMIUM**"

ARTICLE 2

Supremacy of the Constitution

1. (a) This Constitution shall be the Supreme Law of all Graduate students' clubs, associations or unions formed by Graduate students or to which Graduate students of University of Professional Studies, Accra may belong, and any other Constitution found to be inconsistent with any provision of this Constitution shall to the extent of that inconsistency. be null and void.

(b) Notwithstanding article (2) clause one (a), this Constitution shall be subject to the Constitution of the Republic of Ghana, all laws of Ghana a statute establishing the University of Professional Studies, Accra and the Ghana (GRASAG)

ARTICLE 3

Enforcement of the Constitution

1. Any student who alleges that:

- a) An act or omission of any person or group of persons or
- b) A Constitutional decision or resolution of any body, organization, club, union or association; is in contravention of any provision of this Constitution may apply to the Judicial Committee of the GRASAG-UPSA for a declaration to that effect.

2. The Judicial Committee of the GRASAG-UPSA shall for the purposes of such declaration under clause (1) of this article, make such orders and give such directions as it may consider appropriate for giving effect, or ensuring effect to be given to the directions so made.
3. Every member of the GRASAG-UPSA shall have power to ensure compliance with any provision of this Constitution, provided that such power shall be exercised through the Judicial Committee.

CHAPTER 2

ARTICLE 4

Aims and objectives

1. The GRASAG-UPSA, shall seek the academic, social and general welfare of all students pursuing post Graduate programmes in the University of Professional Studies, Accra.
2. The GRASAG-UPSA shall serve as the mouth piece of the entire Graduate Student body of this University and shall engage in activities including but not limited to the following:
 - (a) To provide means of communication between Graduate Students and the University Authorities in all matters affecting the body of the Graduate Students as a whole or affecting any part thereof.
 - (b) To coordinate with other Student Associations and Unions of the University of Professional Studies, Accra and elsewhere in matters of mutual interest.
 - (c) To liaise between the members of the GRASAG-UPSA and the office of the Dean of the School of Graduate Studies (SOGS) On matters affecting the welfare of Graduate Students.
 - (d) To organize lectures, symposia, debate, meetings and other activity which shall be deemed by members of the GRASAG-UPSA to be in the interest of its members.

CHAPTER 3

ARTICLE 5

Membership and decision-making Bodies of the GRASAG-UPSA

- a) Membership shall consist

The Entire Graduate Student Body, to wit, all students in "Statu pupillari", persons, group of persons, etc. recognized in the statutes of the University of Professional Studies, Accra as belonging to the University and pursuing Post Graduate Programmes. GRASAG-UPSA shall be a non-partisan, non-political, and non-secretarial. Association of likeminded registered graduate students of the University.

b) The Decision-Making Bodies of GRASAG-UPSA shall be:

- i. The Senate
- ii. The Executive Council
- iii. Committees/Commissions

CHAPTER 4

ARTICLE 6

The Senate

1. There shall be a Senate of the GRASAG-UPSA which shall be the highest decision-making body of the GRASAG-UPSA and shall meet at least three (3) times every semester.
2. Unless otherwise provided, membership of the Senate shall compromise,
 - a) The Executive Council of the GRASAG-UPSA
 - b) All class representatives
 - c) The Representatives of Halls or Hostels of Residence
 - d) Chairpersons and members of the various GRASAG-UPSA Standing Committee/Commissions.
 - e) Representatives from each Department, Schools and Centers.
 - f) Two observers (who must be members of GRASAG-UPSA), who may also attend meetings, contribute to debates, but shall have no voting rights.

3. Decisions of the Senate shall be published on the various notice boards and website of GRASAG-UPSA by the Secretary within seventy-two (72) hours after the Senate has met.
4. Quorum for the Senate meeting shall be composed of 50%plus one of the entire memberships of the Senate including the President or the Vice President and the Secretary.
5. Any 1/3 members of the Senate may request for an emergency meeting provided that the notice of such request shall be given in writing with signature of the members appended and the agenda or agendum which ever may be appropriate shall be attached and delivered to the GRASAG UPSA secretary. The Senate shall upon receiving this letter act upon dis letter within 72 hours.
6. The President shall be a chairperson of the Senate.
7. In the absence of the President and the Vice President, the Chairperson of the Senate shall be the Secretary of the GRASAG-UPSA

8. Ex-officio members:

The Senate may decide to involve persons with specialized skills, ability and knowledge to participate in the activities of the GRASAG-UPSA. They may also attend meetings, contribute to debates but shall have no voting rights.

9. Functions and responsibilities of the Senate of GRASAG-UPSA

- a. Subject to the provisions of this constitution, the legislative power of GRASAG-UPSA shall be vested in the Senate and shall be exercised in accordance with this constitution.
- The Senate shall:
- (a) Monitor and coordinate all policy decisions taken by the Executive Council for implementation.
 - (b) Have the right to create various committees and advisory bodies with the aim of coordinating concrete issues, facilitating decision making, increasing the flow of information and providing members with the channels for direct involvement in GRASAG-UPSA work and activities.
 - (c) Approve all budgetary allocations before implementation.
 - (d) Decisions taken or resolutions passed by the Senate shall be regarded as GRASAG-UPSA's decisions and as such indicative of the GRASAG-UPSA policies.
 - (e) In the conduct of its deliberations, the Senate shall be guided by the Standing Orders as contained in Appendix 1.

ARTICLE 7

The Executive Council

1. There shall be an Executive Council composed of the:
 - a. President
 - b. Vice President (who is elected on the President's ticket)
 - c. Secretary
 - d. Finance Officer
 - e. Organizing Secretary
 - f. Women's Commissioner
2. All officers of the Executive Council shall hold office for one (1) academic year only.
3. Quorum shall be four (4) members including the President or Vice President and the Secretary, decisions taken will bind on all.
4. Decisions of the Executive Council, unless otherwise stated, shall be taken by simple majority of the Executive Council members present and shall be binding on all members of the Executive Council.
5. The Executive council shall be responsible for the organization of all official meetings, activities of GRASAG-UPSA.
6. The Executive Council of the GRASAG-UPSA in times of emergency shall have powers to act promptly and without prejudice to any provision on this Constitution, assume emergency powers appropriate to contain the emergency situation provided that the Senate shall be informed as soon as practicable on the use of such emergency powers of the Executive Council.
7. The Executive Council shall, jointly and severally, be accountable to the entire membership and the Senate of GRASAG-UPSA.
8. Notwithstanding clause (7) of this Article, all other members of the Executive Council shall report to the President in the performance of their duties.

ARTICLE 8

Functions and responsibilities of the Executive Council

1. The President

- a. There shall be a President who shall be the chief spokesperson of all Graduate students in the University of Professional Studies, Accra.
- b) The President shall represent the Graduate students on the University's Council and shall be a representative of GRASAG-UPSA on the Senate of the National Secretariat.
- c) The President in consultation with the Executive Council shall ensure that GRASAG-UPSA is represented on the requisite Boards/Committee/Commissions of the University of Professional Studies, Accra (UPS) and the National Secretariat of GRASAG, taking into consideration the portfolio and special expertise of these individuals.
- d) The authority of the President shall extend to the execution and maintenance of all provisions, including article 4 of this Constitution.
- e) All meetings of the Executive Council, Meetings, functions and activities of GRASAG-UPSA shall be chaired by the President and in his or her absence the Vice President, unless otherwise stated in this constitution. Meetings of GRASAG-UPSA and any other official.
- f) The President shall have a casting vote in the event of a tie at the Executive Council meeting.
- g) The President shall not be personally liable to proceedings in any court for the performance of his or her functions, or any act of omission and commission in the performance of his or her function under this Constitution
- h) The President shall be the principal signatory to the GRASAG account.
- i) and The President shall present a State-of-GRASAG-UPSA address to the first Senate meeting of every semester and at the handing over ceremony.
- j) The President shall before the assumption of office take and subscribe before the general Graduate student body at public gathering, the Presidential oath set out in the first schedule to this Constitution.

2. The Vice President

There shall be a Vice President of the GRASAG-UPSA who shall perform duties and functions which shall include but not limited to the following functions:

- a) Shall assist the President in the execution of his or her duties.

- b) Shall perform the duties of the President with the same powers given to the President under this Constitution in the absence of the President
- c) Shall perform any additional duties assigned to him or her from time to time by the President.
- d) The Vice President shall before the assumption of office take and subscribe before the general Graduate student body at public gathering, the Vice-Presidential oath set out in the second schedule to this Constitution

3. The Secretary

There shall be a secretary who shall be the secretary to GRASAG-UPSA and shall perform duties and functions which shall include but not limited to the following:

- a. Shall with the authority of the President issue notices of forty-eight (48) hours before the scheduled meetings.
- b) Shall take, keep and maintain true and accurate minutes and records of all proceedings.
- c) Shall in consultation with the Executive Council handle all correspondence of the GRASAG-UPSA.
- d) Shall be responsible for the day-to-day running of the GRASAG-UPSA office and shall have custody of all documents of the GRASAG-UPSA relevant to the office of the Secretary.
- e) Shall perform any duty as may be detailed to him by the Executive Council.
- f) Shall be a signatory to the GRASAG-UPSA account.
- g) The Secretary before the general Graduate student body at public gathering, the Executive Council oath set out in the second schedule to this Constitution.

4. The Finance Officer

There shall be a Finance Officer who shall be the treasurer of the GRASAG-UPSA and shall perform duties and functions which shall include:

- a) The receipt of all monies and revenue accruing to the GRASAG-UPSA or committees and commissions of the GRASAG-UPSA and the disbursement of such moneys as the Executive Council shall direct subject to the approval of the Senate.

b) Keeping and maintaining proper records of accounts of all monies and revenues to which the GRASALS-UPSA is entitled.

c) Being one of the signatories to the bank accounts of the GRASAG-UPSA

d) Performing other duties assigned to him by the President.

e) The Finance Officer shall be the secretary to the Finance Committee and shall perform such duties in relation to the finance committee as provided for in this constitution.

f) The Finance Officer, before assuming office shall take and subscribe before the general Graduate student body at public gathering, the Executive Council oath set out in the second schedule to this Constitution.

5. The Organizing Secretary

There shall be an organizing secretary who shall perform duties and functions which shall include but not limited to the following:

a) Shall be responsible for organizing functions and events of GRASAG-UPSA

b) Shall cater for all external visitors on behalf of the GRASAG-UPSA.

c) Shall perform any additional duties as may be assigned to him by the President and the Executive Council.

d) The organizing secretary before assuming office shall take and subscribe before the general Graduate student body at public gathering, the Executive Council oath set out in the second schedule to this Constitution.

6. The Women's Commissioner

There shall be a women's commissioner of the GRASAG-UPSA who shall be responsible for the following:

a) Serving as the link between the female Graduate students and other groups with the view of sharing ideas and strategies on issues concerning women.

b) Assisting in finding solutions to problems in connection with female Graduate students.

- c) Including in the female Graduate students a sense of inclusion, solidarity and active participation in campus activities.
- d) Shall perform any other duties assigned to her by the President and the Executive Council.
- e) The Women's Commissioner, before assuming office shall take and subscribe before the general Graduate student body at public gathering, the Executive Council Oath set out in the second schedule to this Constitution.

ARTICLE 9

Qualification of the Executive Council

A person shall not qualify for election as an Executive Council Member of the GRASAG-UPSA unless:

1. He or She is a registered member of GRASAG-UPSA.
2. He or She is a final year student.
3. He or She has fully paid the appropriate membership dues.
4. He or She has not once been voted out of any student c any university for a stated misconduct.
5. No adverse findings have been made by any committee of inquiry in any University including the University of Professional Studies, Accra against him/her
6. Any member of the GRASAG-UPSA shall be eligible to stand and contest elections only when he or she has been nominated by three (3) members from each of the halls or programmes.

CHAPTER 5

ELECTIONS

ARTICLE 10

Right to vote

Every registered and paid-up member of the GRASAG-UPSA shall have the right to vote on elections and referenda.

ARTICLE 11

Electoral Commissions

1. There shall be an Electoral Commission of the GRASAG-UPSA which shall consist:
 - a) An Electoral Commission who shall be the Chairperson of the commission.
 - b) At least two deputy commissioners.
2. The members of the Electoral Commission shall be appointed by the Executive councils and approved by the Senate.

ARTICLE 12

Qualification and terms of the Electoral Commission

1. A person shall not be qualified to be appointed a member of the Electoral Commission unless he/she qualifies to be elected as Executive Council member under article 9.
2. The commissioner and the deputy commissioners of the Electoral Commission while they hold office in the commission shall not hold any office of the GRASAG-UPSA
3. If a member of the Electoral Commission ceases to hold office, the commissioner shall continue to work until the President appoints a qualified person who shall be approved by the Senate to fill the vacancy.
4. The outgoing Electoral Commissioner shall hand over to the Electoral Commissioner designate within 7 days after his appointment.

ARTICLE 13

Functions of the Electoral Commission

The Electoral Commission shall perform the following functions:

- a) Conduct and supervise all elections and referenda of the GRASAG-UPSA
- b) Educate the GRASAG-UPSA members on the electoral process. Perform such other functions as it deems fit but within the preview of this Constitution
- c) Perform such other functions as it deems fit but within the preview of this Constitution

- d) Shall conduct the GRASAG-UPSA elections provided that there shall be an open forum which shall fall on the day immediately preceding the day of voting which shall be a week day for candidates to present their manifesto.
- e) The Electoral Commission shall by Constitutional Instrument make rules and regulations for the effective performance of its functions under this Constitution or any other resolution of the Executive Council.

ARTICLE 14

Independence of the commission

Except as provided by the Constitution or in any other law inconsistent with this Constitution, in the performance of its functions, the Electoral Commission shall not be subject to the direction or control of any person or authority.

ARTICLE 15

Voting At Elections and Referenda

1. a) At any election or referendum, voting shall be by secret ballot.
 - b) Immediately after the close of the poll, the presiding officers shall in the presence of the candidates or their representatives and their polling agents as are present, proceed to count, at the polling station, the ballot papers of that station and record the votes cast in favor of each candidate in question.
 - c) Subject to the provision of this Constitution; an issue for determination by referendum shall not be taken to be determined unless at least thirty-five percent (35%) of the persons entitled to vote cast, at least sixty percent (60%) voted in favor of the issue.
-
2. Subject to the provision of this Constitution; where at the close of nominations and the day before a GRASAG-UPSA election,
 - a) Two or more candidates have been nominated for the same position, the election shall be held and the candidate who receives the largest number of votes cast shall be declared elected; or

b) Where one candidate has been nominated, there shall be an election, and that candidate shall be declared elected if 50% plus one vote of the total valid votes cast is in his or her favor.

ARTICLE 16

Expenses of the Electoral Commission

The administrative expenses of the Electoral Commission shall be charged on the GRASAG-UPSA fund.

ARTICLE 17

The Vetting Committee

- a) There shall be a vetting committee, which shall be chaired by the Electoral Commissioner.
- b) The vetting committee shall be responsible for ensuring that candidates for any election under this Constitution satisfy the requirements for any elections or a resolution of the Executive Council or regulations of the Electoral Commission.
- c) The vetting committee shall have the power to disqualify any candidate for any candidate for any elections on grounds stated only in this Constitution or rules and regulations of the Electoral Commission.

ARTICLE 18

Composition of the Vetting Committee

- a) The Chairperson of the Electoral Commission.
- b) One deputy chairman of the Electoral Commission.
- c) Two members of the Senate who are not members of the Executive Council provided also that they are not candidates in that election.
- d) One member of the Executive Council nominated by the Executive Council of the GRASAG-UPSA.

ARTICLE 19

Tenure of Office

The Executive Council of the GRASAG-UPSA shall assume office within twenty-one days after the GRASAG-UPSA elections and vacate office at least thirty (30) days before the end of the second semester of the academic year, unless otherwise decided by Senate; Executive Officers shall attend the last national GRASAG congress where the new Executive officers shall be introduced.

ARTICLE 20

Challenging of Election Results

1. The validity of the elections of an Executive Council may be challenged by a member of the GRASAG-UPSA who may present a petition for that purpose to the Judicial Committee within forty-eight hours after declaration of the results of the position in respect of which the petition has been made.

2. A finding by the Judicial Committee that the election of an

Executive Officer is not valid shall be without prejudice to anything done by any person or authority before such a declaration.

3. The Judicial Committee shall without prejudice to any provision in this Constitution, decide on the validity of any petition within seven days after the petition has been received by the Chairperson of the Judicial Committee

4. The Chairperson of the Judicial Committee, chairperson of the Electoral Commission, two members of the Senate who are not Executive Officers and one Executive Officer shall within two months after the coming into force of this Constitution make rules for the practice and procedure for petitions to the Judicial Committee challenging elections results of an Executive Officer which rules shall be precedent for such purposes as provided for in this article.

CHAPTER 6

REMOVAL FROM OFFICE

ARTICLE 21

Grounds for Removal

1. A person elected under this Constitution shall be removed from office if he/she is found;
 - a) To have acted in violation of the oath of office set out in this first or second schedule to this Constitution; or
 - b) To have conducted himself or herself in a manner:
 - i. Which brings or is likely to bring his or her office into disrepute, ridicule or contempt; or
 - ii. Prejudice or inimical to the interest of Graduate students; or
 - c) To be incapable of performing the functions of his office by reason of infirmity of blood or mind; or
 - d) To have embezzled funds or recklessly handled finances of the GRASAG-UPSA; or
 - e) To be negligent in the discharge of his duties.

ARTICLE 22

Impeachment

Any member of GRASAG-UPSA supported by at least thirty (30) other members may by notice in writing addressed to the Chairperson of the Judicial Committee commence impeachment process with at least two (2) persons from each programme against an Executive Officer. The chairman of the judicial committee shall serve the officer with a copy of the notice of impeachment three (3) clear days before the start of such process.

2. The Chairperson of the Judicial Committee shall, within seven (7) days of receiving the notice of impeachment, convene a sitting of the Judicial Committee for the determination of the grounds for impeachment.

3. (i). Where a prima facie case has been established by the Judicial Committee or otherwise, the Chairperson of the Judicial Committee shall communicate in writing within three (3) days to the Executive Council for the decision of the Executive Council at an emergency meeting.

(ii). For the purpose of article 22 (2), the decision by the Judicial Committee shall be by simple majority.

(ii). The executive Council upon receiving Judicial Committee's report shall within seven (7) days convene an emergency Senate meeting to consider the judicial Committee's report.

4. Any Executive Officer so impeached shall forthwith cease to be an executive officer or a member of the Executive Council and shall not hold any office of the GRASAG-UPSA.

5. Any vacancies created by virtue of any provision of this Constitution shall be filled within twenty-one days after such vacancies are created.

ARTICLE 23

Vote of No Confidence

1. Any member of the GRASAG-UPSA supported by at least (30) persons with at least three (3) from each programme, against other members shall petition the Executive Council for the vote of no confidence to be passed on an Executive Officer or Officers provided that the Executive Officers) shall be served with a copy of the notice of vote of no confidence, three (3) clear days before the commencement of the process.

2. For the purpose of the vote of no confidence, at least three quarters (3/4) of the Executive Council members must be present and the votes of two-thirds (2/3) of such members shall be conclusive for or against the motion.

3. The Executive Council upon receiving the petition as in clause 1 of article 23 shall within seven (7) days convene an emergency Senate meeting to consider the petition.

4. The Executive Officer of officers referred to in clause (1) of this article, shall have the right to attend any meeting convened for the purpose of passing such votes of no confidence and be given a hearing at the Senate before the vote is passed.

ARTICLE 24

Further provisions on Removal

1. Whenever the President resigns or is removed from office, the Vice President shall assume office of the Vice President shall assume office for the unexpired term of office of the President with effect from the date of the resignation or removal of the President.
2. Upon assumption of office as the President, he/she shall within twenty-one (21) days nominate a Vice President in consultation with the Executive Council.
3. In the event that all the Executive Officers resigned or are removed embolic, the Chairperson of the Judicial Committee shall assume office as President for the unexpired term of office of the President with effect from the date of resignation or removal.
4. The Chairperson of the Judicial Committee referred to in clause (3) as acting President shall appoint interim executives to run the GRASAG-UPSA for the unexpired period.
5. In the event of a vacancy being created, the President shall appoint any member of the GRASAG-UPSA who is qualified and approved by the Senate to assume that office for the unexpired period.

ARTICLE 25

Removal of a Member of the Senate

A Graduate Hall or hostel of residence, Department, Schools and centers shall have power to withdraw or remove any or all its representatives on the Senate provided that such exercise shall be effective through a resolution properly passed by the said Graduate hall of residence, school and communicated in writing to the Senate.

CHAPTER 7

COMMITTEES OF GRASAG-UPSA

ARTICLE 26

Committees

1. In pursuance of the objectives of the GRASAG-UPSA, the Executive Council shall appoint standing committees and other committees as may be necessary for the effective running of the GRASAG-UPSA provided membership of such committees shall not exceed five (5) but less than three (3).
2. The standing committee shall be appointed at the first sitting of the Executive Council and shall be charged with such function assigned by this Constitution or decision of the Executive council
3. A committee appointed under this article shall have the power, rights and privileges for-
 - a) Enforcing the attendance of witnesses and examining them on oath, affirmation or otherwise.
 - b) Compelling the production of documents

The standing committee of the GRASAG-UPSA shall include;

- a) The Finance Committee
- b) The Judicial Committee
- c) The Welfare Committee
- d) Electoral Commission (EC)
- e) Women Commission

ARTICLE 27

The Finance Committee

The Finance Committee Comprise;

- a) The Financial Officer of the GRASAG-UPSA who shall be the secretary to the committee
- b) Four (4) other persons appointed by the Executive Council provided that such persons have backgrounds in accounting, finance or any related field

ARTICLE 28

Functions of the finance coming.

The Finance Committee shall;

- a) Assist the Executive Council to prepare the annual budget and annual financial statements of GRASAG-UPSA to be presented to senate for approval.
- b) Encourage and promote the efficient utilization of the resources of the GRASAG-UPSA through effective and efficient financial measures
- c) Be responsible for the monitoring and receipt and payments of the GRASAG-UPSA funds and shall report to the Executive Council at least once every semester,
- d) Ensure that the Finance Officer keeps proper books of accounts and assist him or her to prepare financial statements.
- e) The finance committee shall prepare and present to senate financial statements of GRASAG-UPSA clear 21 days before handing over.
- f) Any other duties assigned to it by the Executive Council or the President.

ARTICLE 29

The Judicial Committee

1. The Judicial Committee shall comprise;

- a) A head who shall be appointed by the Judicial Committee
- b) A deputy who shall also be appointed by the Executive Council
- c) Three other members appointed by the Executive Council

2. (a). The provision of article nine (9) on the qualification of the Executive Officers shall also apply to the Chairperson and the deputy chairperson of the Judicial Committee

(b). The Chairperson and his or her deputy shall have a legal background or knowledge in any law related field.

(c) To ensure the independence of the committee, once appointed members of the Judicial Committee remain in office unless on stated misconduct or the end of members officially approved program of study or through resignation or infirmity of mind or body or by death

3. (a) In the exercise of its functions the Judicial Committee shall be subject to this Constitution only and shall not be subject to this

Constitution only and shall not be subject to the control or direction of any person(s) or authority(ies).

(b) Neither the Executive Council nor the general Graduate students shall interfere with the members of the Judicial Committee in the exercise of its functions. The general Graduate student body as well as the Executive Council shall accord the Judicial Committee such assistance as the Judicial Committee may reasonably require in preserving the independence, dignity and effectiveness of the committee subject to this Constitution.

4. The Judicial Committee shall have jurisdiction in

a) All matters relating to the enforcement and/or interpretation of the provisions of this Constitution.

b) All matters as to whether a resolution was made or where it is alleged that a person or group of persons or body of persons have acted in ultra vires to the powers conferred on them by this Constitution.

c) All matters or cases relating to the GRASAG-UPSA elections

d) The receipt and determination of all petition addressed to it; provided such petitions are signed by not less than three (3) students from each programmes

e) Resolution of dispute amongst the GRASAG-UPSA hierarchy or amongst members of the general Graduate students* body and between any two or more Graduate programmes or schools.

f) Conducting impeachment process against any officers) of the GRASAG-UPSA and bringing disciplinary actions against offending officers.

g) The prescription of appropriate punishment on any student who misconducts himself/herself. The Judicial Committee may enforce any ruling in conformity with the institute's rules and regulations.

h) The swearing in of all elected and appointed officers.

i) Shall receive and determine the acceptance or rejection of notices of resignations brought to it

j) For the purpose of hearing and determining a case or matter within its jurisdiction, the Judicial

k) Committee shall have the power to do such things as shall be reasonably necessary for the purposes of enforcing or securing the enforcement of its powers in accordance with the rules and regulations of the University

l) In the exercise of its functions, the Judicial Committee shall have power to give directions to give directions to the Senate, the Execution Council and the Executive Officers as well as the general Graduate student body legal issues.

m) Without prejudice to any provision of this Constitution, the decision of the Judicial Committee on matters of interpretation of this Constitution shall be final and conclusive and in accordance with rules and regulations of the University.

n) Notwithstanding clause 3 (a) of this article in the exercise of its

functions, the Judicial Committee shall be guided by the Constitution of the republic of Ghana, the laws of Ghana, the statutes of the University and the University's rules and regulations.

5. The decision of the Judicial Committee shall be by simple majority and in the exercise of its functions; the Judicial Committee shall be bound to give written reasoning for its decisions.

ARTICLE 30:

The Appeals Board

1. There shall be an appeal board Which shall review decisions of the Judicial Committee if the parties involved are not satisfied with the decisions.

2. The Appeal Board Shall Consist

a) The Dean of Graduate School who shall be the Chairperson of the Board

b) The Secretary to the Board of Graduate School

c) The Chairperson of the Judicial Committee

d) Deputy Chairperson of the Judicial Committee

e) The Chairperson of the Executive Council

3. Without prejudice to any provision of this Constitution, an appeal shall lie as of right of judgment or order of the Judicial Committee to the appeals board whose decision shall be final.
4. The decision of the appeals board shall be by simple majority and in the exercise of its functions, the appeals board shall be bound to give written reasoning for its decision.

ARTICLE 31

The Welfare Committee

1. (a) Members of the welfare committee shall be appointed by the President in consultation with the Executive Officers subject to the approval of the Executive Council.

(b) The Chairperson of the welfare committee shall be appointed from among the members of the committee at its first meeting.
2. The Welfare Committee shall be responsible for:
 - a) Ensuring the welfare of the members of the GRASAG-UPSA.
 - b) Provision of healthcare and first-aid facilities for members of the GRASAG-UPSA
 - c) Offering advice and initiating programmes for improvement of sanitation in and around the Graduate school, halls or hostels of residence
 - d) Any other duties assigned to it by the Executive Council or the President

ARTICLE 32

The Woman's Commission

1. There shall be a Women's Commission as established under this article.
2. (a) The Women's Commission shall consist all female Graduate students of the University of Professional Studies

(b) There shall be a chairperson on the commission who shall be elected and designated as the women's commissioner
3. The provision of article 10 on the qualification of Executive Officers shall also apply to the women's commissioner, deputy women's commissioner, secretary, organizing secretary and Financial Controller of the women's commission

ARTICLE 33

Commission of Inquiry

1. The Senate shall appoint the commission of inquiry to investigate any matter of interest *o Graduate students whenever:

- a) A Graduate student, supported by thirty (30) other Graduate students petition the Executive Council in writing to do so or
- b) The Executive Officers are satisfied that a commission of inquire should be appointed or
- c) The Executive Council advises that it is the interest of students so to do, or
- d) The Executive Council, by a resolution request that a commission of inquiry be appointed to investigate any matter specified in the resolution as being matter of importance of Graduate students.

2. A person shall not be appointed a commissioner or chairperson of a commission of inquiry under this article unless he or she;

- a) A person of considerable experience in students' affairs or
- b) A person who possess special qualifications or knowledge in respect of the matter being inquired into.

ARTICLE 34

Duties of the Commission of Inquiry

1. A commission of inquiry shall;

- a) Make a full, faithful and impartial inquiry into any matter specified in the Instrument of appointment
- b) Report in writing the results of inquiry; and
- c) Furnish in the report the reasons the leading to the conclusions stated in the report

CHAPTER 8

FINANCE

ARTICLE 35

The GRASG-UPSA Fund

1. The sources of the GRASAG-UPSA fund shall include:

- a) Subscription or dues as may be proposed by the Executive Officers in consultation with the Finance Committee and Management
- b) Revenues accruing from social functions and other venture undertaken by and on behalf of GRASAG-UPSA.
- c) Donations or grants obtained from benevolent organizations and individuals.

2. Any Committee or commission of the GRASAG-UPSA shall have the power to raise funds or receive revenue for the effective performance of its functions.

3. Any such committee or commission shall within seventy-two (12) hours of raising or receiving any revenue or other moneys for the purposes of, on behalf of or trust for that committee or commission, unless otherwise stated by a resolution of the Executive Council, pass through the GRASAG-UPSA Financial Officer who shall lodge such revenue

- i. The GRASAG-UPSA shall operate a current and savings account with registered bank or any particular bank as agreed upon by a resolution of Executive Council
- ii. Any withdrawal from the GRASAG-UPSA bank accounts should be authenticated by the signature of the Dean of students and copied to the Dean of the school of Graduate Studies.
- iii. The signatories to the GRASAG-UPSA account shall consist:
 - a) Either Director of Finance, UPSA or his/her assistant who shall be the principal signatories.
 - b) Either the President or Financial Officer or Secretary.
- iv. Any transaction, project or program that shall be approved by the Executive Council and ues or moneys into the GRASAG-UPSA bank account.

implemented at all, shall be continued by succeeding Executive Officers.

v. The Executive Council shall have power to modify the terms of, or rescind any transaction or contract, which in the opinion of two-thirds (2/3) majority of the Executive Council is not in the best interest of the members of the GRASAG-UPSA or is inconsistent with the provisions of the Constitution

ARTICLE 36

Budget

1. The President shall cause to be prepared and presented to the senate within thirty days from the commencement of the first semester, estimates of revenues and expenditure of the GRASAG-UPSA for the

academic year.

2. The proposed estimates of any committee or commission as well as the budget of the Executive Council shall be classified under programs or activities of the GRASAG-UPSA and shall be presented to the executive council to provide for the issues from the GRASAG-UPSA fund or such other appropriate fund, the sum of money necessary to meet that expenditure and the appropriation of those sums for the purposes specified.

3. Where in respect of the academic year, it is found that the amount of moneys appropriated for any purpose is insufficient or that a need has arisen for expenditure for purpose is insufficient or that a need has arisen for expenditure for purpose for which no sum of money required, shall be presented to the Executive Council for consideration.

ARTICLE 37

Expenditure on GRASAG Members

1. Where it becomes exclusively necessary in the interest of the Graduate students that any member of GRASAG-UPSA remains in residence during vacation periods, the cost of two meals per day during vacation shall be borne out of the GRASAG-UPSA funds provided such costs and duration do not exceed what in all given circumstances is fair and reasonable.

2. Expenditure on Executive Officers, all members of the committee and individuals shall be charged on the GRASAG-UPSA fund and shall include; a) Vacation residence fee
b) Sitting allowances
c) Cost of meals during vacation
d) Travel, transport, and communication costs.
3. The rates of expenses in clause (1 and 2) above shall be proposed by the Executive Officers and approved by the Executive
4. Council in consultation with the Finance Committee.
5. All expenses shall be approved and approved and signed by the president as the chief spending officer or his/her representative.

CHAPTER 9

MISCELLANEOUS

ARTICLE 38

Honorarium

Certificates of honors or awards shall be presented to the Executive Officers, members of the Executive Officers, members of the Executive Committee and the Senate upon successful completion of their tenure of office and handing over ceremony to be held in a public gathering of the general Graduate student body. All members of the committee and individuals who have contributed to the course of Graduate students shall be entitled to certificates or awards.

ARTICLE 39

Indemnity

No member or executive of the Executive Council, Executive Officers or any other committee of the GRASAG-UPSA shall be held liable either jointly or severally for any act or omission during their tenure of office provided that sch liabilities shall have been incurred in the course of lawful

execution of duties assigned to them under this Constitution or by a decision of the Graduate student body.

ARTICLE 40

Copies of the Constitution

A copy of this Constitution shall be made available to every member of the

GRASAG-UPSA Without prejudice to clause (1) of this article, the secretary shall cause to be kept in each library in the University of Professional Studies, copies of this Constitution

CHAPTER 10

AMENDMENTS AND REVIEWS

ARTICLE 41

Amendments and reviews

1. No entrenched provision of this Constitution shall be amended unless;
 - a) A written proposal of such amendment signed by at least one hundred and fifty (150) students in good standing consisting of not less than fifteen (15) students from at least each programme and addressed to the Chairperson of the Judicial Committee,
 - b) The Judicial Committee shall consider such proposals made for amendments and finding and recommendations made by the Judicial Committee shall be submitted to the Executive Council and the Graduate student body,
 - c) The Executive Council shall upon receipt of the proposal, debate and may adopt it by resolution of not less than three quarters (3/4) majority of its members
 - d) The proposal shall be submitted to a Graduate students' forum for further debate
 - e) and adoption by three quarters (3/4) majority of the Graduate students present
 - f) No amendments shall be deemed to have been made unless the above process has been duly followed.
2. A proposal for review of this Constitution shall go through the same process as an amendment but such proposals shall be signed by at least one hundred (100) students in good standing consisting not less than twenty-five (25) Graduate students from each Graduate hall or hostel of residence.

3. Where the proposals are approved, promulgated and adopted, the new Constitution shall come into effect within seventy-two (72) hours after promulgation and adoption.

Dated this 2 day of September in the year of our lord Two Thousand And Fifteen.

Signed:

24/11/2015

RE-PRINTED BY.

REYNOLDS OFORI AGYAPONG

(GRASAG PRESIDENT)

SCHEDULES

SCHEDULE 1

The Presidential Oath

I..... having been elected to the high office of the President (Vice President) of the GRASAG-UPSA do hereby in the name of God solemnly affirm that I will be faithful and true to the GRASAG-UPSA; that I shall strive at all times to preserve, protect and defend the Constitution of the GRASAG-UPSA and hereby dedicate myself wholly without fear or favor, to the service and welfare of Graduate students of the University of Professional Studies, Accra and uphold the Constitution of the GRASAG-UPSA.

I further solemnly affirm that I will conform to the principle of strict accountability; financially and otherwise and that should I at any time break this oath of office, I shall submit myself to the dictates of the GRASAG-UPSA Constitution and suffer the penalty for it. (So, help Me God) **To be administered by the Chairperson of the Judicial Committee before a gathering of the Graduate student body during the handing over ceremony**

SCHEDULE 2

General Oath of Office

I..... having been elected as..... do hereby in the name of God solemnly affirm that I will be faithful and truly serve the GRASAG-UPSA, that I will support and uphold the principle of accountability; financially and otherwise and seek the welfare of Graduate students of the University of Professional Studies, Accra and uphold the Constitution of the GRASAG-UPSA.

I further solemnly affirm that should I at any time break this oath of office, I shall submit myself to the penalty prescribed by the GRASAG-UPSA Constitution. (So, Help Me God) **To be administered by the Chairperson of the Judicial Committee before a gathering of the Graduate student body during the handing over ceremony.**

SCHEDULE 3

Oath for the members of the Executive Council

I having been elected/appointed to the Executive Council of the GRASAG-UPSA do hereby in the name of God solemnly affirm that I will be faithful and loyal to the GRASAG-UPSA Constitution and uphold, protect and defend the GRASAG-UPSA Constitution and expose with zeal any act, commission or omission or any other matter that may undermine the said GRASAG-UPSA Constitution. (So, Help Me God) **To be administered by the Chairperson of the Judicial Committee before a gathering of the Graduate student body during the handing over ceremony.**

SCHEDULE 4

Judicial Oath

I.....having been appointed as the Chairperson Deputy Chairperson/ member of the Judicial Committee of the GRASAG-UPSA, do hereby in the name of God affirm that in will interpret the GRASAG-UPSA Constitution without fear or favor and to defend, uphold the Constitution and to adjudicate on all matters that shall be brought to the Judicial Committee without affection, ill-will nor personal interest.

I further solemnly affirm that I shall not be found wanting in the discharge of my responsibilities as a member of the GRASAG-UPSA Judicial Committee for place myself in such a position as o frustrate the efficient functioning of the said Judicial Committee of the GRASAG-UPSA. (So, Help Me God)

To be administered by the Chairperson of the Judicial Committee before a gathering of the Graduate Student body during the handing over ceremony.

INTERPRETATION

DAYS refer to all working days in the week excluding Saturdays and Sundays.

EXECUTIVE COUNCIL MEMBERS 2015/2016

1. Mr. Reynolds Ofori Agyapong (President~
2. Miss Rowena Efua Abbey (Vice President)
3. Mr. Emmanuel Ofori Akoto (Secretary)
4. Mr. Stephen Tamatey (Financial Officer)
5. Mr. Enoch Azasu (Organizing Secretary)
6. Miss Dorcas Puotiere (Women's Commissioner)